

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-02
NIELSEN & BAINBRIDGE, LLC

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN
MARINE (SINGAPORE) PTE. LTD. AND YANG MING MARINE TRANSPORT
CORPORATION

SECOND JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”), and Respondents Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”),¹ and Yang Ming Marine Transport Corporation (“Yang Ming” and, collectively with Evergreen, the “Respondents”) (NBG, collectively with

¹ The Evergreen Respondents are each parties to the Evergreen Line Joint Service Agreement, FMC Agreement No. 011982, and collectively do business under the common trading name Evergreen Line.

Respondents, the “Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Second Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 60-day extension of the remaining deadlines set forth in the Presiding Officer’s March 20, 2026 Amended Scheduling Order to accommodate the current progress of the Parties’ discovery, which is moving forward as quickly as possible.

I. The Current Schedule

On March 20, 2026, the Presiding Officer entered an Amended Scheduling Order with the following deadlines relevant to this Motion:

EVENT	CURRENT DEADLINE
Substantial completion of production of documents and ESI pursuant to initial requests	May 1, 2026
Complete depositions of fact witnesses	June 18, 2026
Disclosure of initial expert reports, if any	June 29, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	July 1, 2026
Disclosure of rebuttal expert reports, if any	July 20, 2026
Complete expert depositions	August 3, 2026
Close of discovery	August 3, 2026
Complainant’s brief, proposed findings of fact, appendix due	August 31, 2026
Respondents’ opposition brief, proposed findings of fact, response to Complainant’s proposed findings of fact, appendix due	September 28, 2026
Complainant’s reply brief, response to Respondents’ proposed findings of fact due	October 9, 2026

The Parties submit the below as good cause for an additional 60-day (plus slight modifications to accommodate deadlines falling over weekends or holidays) extension of each of the respective dates at issue:

Since the issuance of the March 20, 2026 Amended Scheduling Order, the Parties have progressed further with the discovery process and have both met the substantial completion of

production of documents and ESI pursuant to initial requests. By May 1, 2026, Complainant produced a total of approximately 141,200 documents to Respondents and likewise, Respondent Yang Ming produced a total of 144,171 documents to Complainant and Respondent Evergreen produced approximately 250,000 documents over eight productions. The Parties met on May 5, 2026 to discuss the status of ongoing productions and the discovery schedule, and counsel for Respondents informed Complainant that there would be additional document productions due to technical issues with Respondent Evergreen's eDiscovery vendor and delays in processing data from Evergreen custodian accounts.

From May 4, 2026 to May 8, 2026, Evergreen produced approximately 1 million additional documents, totaling 51 productions and 1,287,784 documents total. With approximately 1.5 million documents and 5.6 million pages produced, the Parties need the time to review the voluminous batches of document productions to prepare for fact witness depositions. While both sides have continued to review incoming productions on an ongoing basis, this request is based on the reasonable pace of the Parties' review when using all resources and all good faith efforts. To address the volume of documents in any workable manner, using all reasonable efforts, the Parties submit that the requested for-cause extension to the discovery schedule made herein be granted.

II. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for an Extended Timeframe

The facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Amended Scheduling Order's May 1, 2026 deadline for substantial completion of document (including ESI) production. As of May 8, 2026, the Parties are fully complete in their initial productions and do not seek any extension of the substantial completion deadline.

As a part of the ongoing review, the Parties will need to work to review the substantial amount of documents that have been pulled in by the Parties' ESI Protocol terms. The Parties submit that the substantial volume of documents, the need for thorough review, and the pace that the documents can be intelligently reviewed for responsiveness, key issues, privilege, and confidentiality is a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively ahead of depositions and that each Party is not prejudiced by the fact that a large amount of documents have been collected in accord with discovery demands properly put forth.

B. The Large Discovery Volumes Will Impact Other Case Milestones

The Parties remain respectful of the deadlines set forth in the March 20, 2026 Amended Scheduling Order, and to-date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the size of the responsive documents has made it clear to the Parties that even with all their best efforts, they will not be able to complete the review of document discovery within the present deadlines. Consequently, the Parties will not be able to adequately take depositions based upon a full factual record and further, will not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have served written discovery requests, including interrogatories and requests for production, and have provided objections and responses to such requests. The Parties further have met and conferred, and exchanged emails, regarding these requests and responses to ensure there are no current outstanding disputes. The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer.

The Parties are aware of the prior Order of this court and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, concerning two Respondents and approximately 1.5 million documents and 5.6 million pages produced, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

The Parties will endeavor to prevent any further requests for additional time, but limited extension requests may become necessary if, for example, there is the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondents). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues to the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of

time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.”

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

III. Conclusion

Given that the Parties are still working diligently to review documents, the Parties respectfully submit that an extension of the remaining deadlines in the Presiding Officer’s March 20, 2026 Amended Scheduling Order is necessary to allow the Parties a fair opportunity to review the produced documents, depose each other’s respective fact witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended schedule, which (accounting for weekends and holidays) moves 60 days from the deadline of the March 20, 2026 Amended Scheduling Order for the completion of depositions of fact witnesses:

EVENT	PROPOSED DEADLINE
Complete depositions of fact witnesses	August 17, 2026
Disclosure of initial expert reports, if any	August 28, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	August 31, 2026
Disclosure of rebuttal expert reports, if any	September 18, 2026
Complete expert depositions	October 2, 2026
Close of discovery	October 2, 2026
Complainant's brief, proposed findings of fact, appendix due	October 30, 2026
Respondents' opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	November 30, 2026
Complainant's reply brief, response to Respondents' proposed findings of fact due	December 8, 2026

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: May 14, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

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